

(CCP § 389(a).)

The Code of Civil Procedure continues:

If [such] a person ... cannot be made a party, the court shall determine whether in equity and good conscience the action should proceed among the parties before it, or should be dismissed without prejudice, the absent person being thus regarded as indispensable. The factors to be considered by the court include: (1) to what extent a judgment rendered in the person's absence might be prejudicial to him or those already parties; (2) the extent to which, by protective provisions in the judgment, by the shaping of relief, or other measures, the prejudice can be lessened or avoided; (3) whether a judgment rendered in the person's absence will be adequate; (4) whether the plaintiff or cross-complainant will have an adequate remedy if the action is dismissed for nonjoinder.

(*Id.* at § 389(b).)

An objection that a suit lacks indispensable parties is “so fundamental, it need not be raised by the parties themselves; the court may, of its own motion, dismiss the proceedings, or refuse to proceed, until these indispensable parties are brought in.” (*Bank of California Nat. Ass’n v. Superior Court in and for City and County of San Francisco* (1940) 16 Cal.2d 516, 522.)

Cross-Defendants argue that “[d]espite the Carapias seeking to extinguish Parker’s 12.5-foot-wide easement over the Carapia Property, Parker is not named as a party in the Carapias’ Cross-Complaint.” (MJOP at 2:21-22.) That the Cross-Complaint seeks such relief is not entirely clear to the Court, nor is it clarified by Cross-Complainants’ opposition, which states in part that “Azamey/Unger claim[] that Parker and the Carapias are apparently adverse to each other and that Carapias should have named Parker in said Cross-Complaint on the grounds that Carapia and Parker have hostile claims to the title or efficacy of the easement.” (Opp. at 3:13-16.) The Court has reviewed the Carapias’ Cross-Complaint and the only easement referenced is the one Cross-Defendants seek to enforce by their First Amended Complaint. (See XC at ¶ 8.) The prayer for relief seeks “judgment that Cross-Complainants are the fee simple owner of all right, title, and interest in and to the described Subject Property free from any claim of easements or rights **on the part of Cross-Defendants**[.]” (XC Prayer for Relief at ¶ 1 [emphasis added].) Cross-Defendants repeatedly reference Parker’s “12.5 of easement over the Carapia property” (see, e.g. MJOP at 3:6) but that appears to be the depth of their own easement over the Carapia’s property (excluding the 7.5 feet over the Parker property). (See FAC at ¶ 8 and Fig. 2.) The Court is not aware of a separate Parker easement over the Carapia property.

It is true that a quiet title judgment cannot be entered in the absence of all parties with an interest in the property at issue. (See *Washington Mutual Bank v. Blechman* (2007) 157 Cal.App.4th 662, 667 [“A person is an indispensable party to litigation “if his or her rights must necessarily be affected by the judgment.””].) While Parker may be a conditionally necessary party (given her interest in the Azamey/Unger easement), it is not clear that she is an indispensable party to the Carapias’ Cross-Complaint such that it cannot proceed without her participation. Furthermore, she is a full participant in this litigation, given that she is a named Defendant and Cross-Complainant in her own right. There is no risk of inconsistent obligations with respect to the subject easement.

The MJOP on this ground is **denied**.

8. 9:00 AM CASE NUMBER: MSC22-00300

CASE NAME: AZAMEY VS CARAPIA

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AS TO PARKER'S CLAIMS FOR INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

FILED BY: AZAMEY, MARIAM

TENTATIVE RULING:

Before the Court is Plaintiff and Cross-Defendant Mariam Azamey and Plaintiff James Unger (collectively, "Cross-Defendants")'s motion for judgment on the pleadings ("MJOP"). The MJOP relates to Defendant Pam Parker ("Cross-Complainant" or "Parker")'s claims for intentional and negligent infliction of emotional distress.

For the following reasons, the MJOP is **granted, with leave to amend**.

Brief Factual Allegations and Procedural Background

This is a property dispute between neighbors regarding an easement. Plaintiffs' Property is the dominant tenement of a 20-foot-wide easement that lies 12.5 feet on the Carapia Property and 7.5 feet on the Parker Property. (FAC at ¶ 8.) They allege several encroachments on this easement since their purchase of the property including overgrown vegetation, inoperable vehicles, and a screened patio. (*Id.* at ¶ 10(a).) Plaintiffs also allege that Carapias have maintained a fence within the 12.5 foot portion of the easement on the Carapia Property. (*Id.* at ¶ 10(b).)

Defendant Parker filed a Cross-Complaint for (1) trespass, (2) negligence, (3) intentional infliction of emotional distress, (4) negligent infliction of emotional distress, and (5) civil conspiracy on April 12, 2022.

The Carapia Defendants filed a Cross-Complaint for (1) quiet title based on adverse possession, (2) trespass, (3) negligence, (4) intentional infliction of emotional distress, (5) negligent infliction of emotional distress, and (6) civil conspiracy on April 13, 2022.

Plaintiffs filed a verified first amended complaint for (1) quiet title, (2) declaratory relief, (3) easement by necessity, (4) nuisance, (5) negligence per se, (6) slander of title, and (7) injunctive relief on November 29, 2022.

Legal Standard

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) As a consequence, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:292.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061; *Burnett, supra*, 123 Cal.App.4th at p. 1064.) In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action. (*Fire Ins. Exchange v. Sup. Ct.* (2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:295.)

Analysis

Cross-Defendants argue that Cross-Complainant's emotional distress claims fail as a matter of law; the Court takes each cause of action in turn.

Negligent Infliction of Emotional Distress

Cross-Defendants argue that the parties do not have a special preexisting relationship which would give rise to a heightened duty of care required for negligent infliction of emotional distress. (MJOP at § III(A).)

As to Cross-Complainant's claim for NIED, the subject duty and breach are uncertain. A claim for NIED is not an independent tort, but simply the tort of negligence (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072), the elements of which are "duty, breach of duty, causation, and damages." (*Ess v. Eskaton Properties, Inc.* (2002) 97 Cal.App.4th 120, 126.)

The Cross-Complaint does not identify a duty or breach under this cause of action; instead, Parker incorporates by reference all the preceding paragraphs of the pleading. To the extent the claim may be based on Cross-Defendants' alleged conduct under the nuisance/trespass causes of action, a claim for NIED does not lie where, as here, the alleged injury is to property, and there are no facts alleged that demonstrate the existence of a special relationship of trust and confidence between the parties. (See *Sher Leiderman* (1986) 181 Cal.App.3d 867, 883-884 (*Sher*); see also *Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 985 ["unless the defendant has assumed a duty to plaintiff in which the emotional condition of the plaintiff is an object, recovery is available only if the emotional distress arises out of the defendant's breach of some other legal duty and the emotional distress is proximately caused by that breach of duty. Even then, with rare exceptions, a breach of the duty must threaten physical injury, not simply damage to property or financial interests."].) While the Cross-Complaint reflects that the parties are neighbors (see XC at ¶¶ 2,3), the mere ownership of adjoining lots does not in fact give rise to a special relationship of trust or confidence requiring a heightened duty of care. (*Sher*, at p. 884.) Accordingly, Cross-Complainant fails to state a claim for negligent infliction of emotional distress.

The MJOP on the cause of action for negligent infliction of emotional distress is **granted with leave to amend**.

Intentional Infliction of Emotional Distress

Cross-Defendants argue that the allegations of the Cross-Complaint are insufficient to state a cause of action for intentional infliction of emotional distress.

" '[T]o state a cause of action for intentional infliction of emotional distress a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.' " (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832.) " 'Conduct, to be " 'outrageous' " must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.' " (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.)

The allegations of the Cross-Complaint are sparse. The Cross-Complaint alleges within the trespass cause of action that "in 2021, Cross-Defendants, and each of them, have physically trespassed onto the Subject Property and made threatening statements and remarks about how Cross-Defendants, and each of them, were going to remove the real and personal property from the ownership and

possession of Cross-Complainant.” (XC at ¶ 10.) This allegation is inadequate to state a claim for intentional infliction of emotional distress.

The MJOP on the cause of action for intentional infliction of emotional distress is **granted with leave to amend. Amended pleadings must be filed and served within 30 days of service of notice of entry of this order.**

9. 9:00 AM CASE NUMBER: MSC22-00430

CASE NAME: A.S. VS APPLIED BEHAVIOR

***HEARING ON MINOR'S COMPROMISE**

FILED BY: S., A.

TENTATIVE RULING:

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor’s Claim lodged with the Court on November 18, 2025.

10. 9:00 AM CASE NUMBER: N25-2284

CASE NAME: CLAIM OF:MARIAN OAMILDAMARIAN OAMILDA

***HEARING ON MINOR'S COMPROMISE**

FILED BY: IBALDEZ OAMILDA, MARIVIC

TENTATIVE RULING:

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor’s Claim lodged on February 10, 2026.

11. 9:00 AM CASE NUMBER: N25-2287

CASE NAME: CLAIM OF:MAVERICK OAMILDAMMAVERICK OAMILDA

***HEARING ON MINOR'S COMPROMISE**

FILED BY: IBALDEZ, MARIVIC

TENTATIVE RULING:

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor’s Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on February 10, 2026.